

**DGRE Pty Ltd atft DGRE Brewsters
Trust t/as OBrien Real Estate
(Brewsters)**

Shop 4 & 5, 121 Hall Road,
Carrum Downs, VIC 3201

P: 03 9783 0688

E: carrumdowns@obre.com.au

ABN: 63 197 530 440



Leasing & Management Authority

for

7 Stewart Avenue, Narre Warren South VIC 3805

This agreement is between **DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)**
and **Christopher Stephen, Priya Stephen.**

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ESSENTIAL PARTICULARS

Agent: (Us)

Nicole Riverso

Shop 4 & 5, 121 Hall Road Carrum Downs, VIC 3201

Email:	nicole.riverso@obrienrealestate.com.au	Company:	OBrien Real Estate (Brewsters)
ABN:	63 197 530 440	ACN:	128 739 588
Work Phone:	03 9783 0688	Mobile:	0488 008 492

Clients: (You)

Christopher Stephen

15 Oakleaf Place, Narre Warren Vic 3805, Australia

Email:	sjc_stephen@yahoo.com.au	Company:	
ABN:		ACN:	
Work Phone:		Mobile:	0421 479 608

Priya Stephen

15 Oakleaf Place, Narre Warren Vic 3805, Australia

Email:	priya.stephen11@gmail.com	Company:	
ABN:		ACN:	Victoria
Work Phone:		Mobile:	0421561920

Property:	7 Stewart Avenue, Narre Warren South VIC 3805
Exclusive Leasing Period:	<u>90</u> days
Continuing Leasing Period:	<u>90</u> days after expiry of the Exclusive Period
Fixed Management Period:	n/a
Rent:	<u>\$380</u> per week
Security Bond:	<u>\$ 1651</u> (1.0 month rent)
Services:	Refer to attached 'Schedule of Services'
Fees:	Refer to attached 'Schedule of Fees'
Urgent Repair Limit:	DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is authorised to undertake urgent repairs up to <u>\$ 2500.00</u> - refer Clause 16.

AGREEMENT

The client appoints DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to perform the Services in respect of the Property in exchange for payment of the Fees and Charges incurred during the term of this Authority subject to the conditions attached to this Authority and DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) accepts that or any other fees and charges as may be agreed between the Client and Agent at any given time.

The Client verifies, warrants and confirms that:

- a. the Client has the authority to enter into this Authority;
- b. the Client is the legal owner of the Property and all owners are listed above as the Client including to disclose any trustee capacity and trust particulars where relevant;
- c. there are no other existing letting or managing Authorities in respect of the Property;
- d. in accordance with section 49A(1)(b) of the *Estate Agents Act 1980*, prior to signing this Authority the Client was advised by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) that Agent's Fees and Charges were subject to negotiation;
- e. the Client received at the time of signing a signed copy of this Authority;
- f. the client has had the opportunity to obtain legal and other professional advice with respect to this Authority;
- g. where commission sharing is applicable as indicated in the Agents Fees and Charges and clauses 2.6 and 15, the Client acknowledges, prior to signing this Authority, having received a notice of commission sharing in accordance with section 48 of the *Estate Agents Act 1980*; and
- h. where the Client is a proprietary company, DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may require the directors of such company to provide personal guarantees guaranteeing the company's performance under this Authority.

Signatures

This Authority should be signed, and a copy retained, by the Client prior to signing a Residential Rental Agreement in respect of the Property.

By signing below the parties acknowledge and confirm they have read and understood this Authority and agree to be bound by it.

Client Signature(s)

Rental Provider 1: **Christopher Stephen**



Signed at Tue, 23/08/2022 21:33 , from device: Windows 10 Other Chrome 104.0.0

Rental Provider 2: **Priya Stephen**



Signed at Tue, 23/08/2022 21:38 , from device: Windows 10 Other Chrome 104.0.0

Note: Where signed by the Client's authorised representative or the Client is a corporation, evidence of authority to sign must be provided.

Agent Signature(s)

Property Manager : **Nicole Riverso** on behalf of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)

Nicole Riverso

Signed at Wed, 24/08/2022 09:24 , from device: Windows 10 Other Chrome 104.0.0

Important

- DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) must give the Client a signed copy of this Authority when it is signed by the Client.
- DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) must complete the details of the Services and the Fees and Charges before this Authority is signed.
- The attached Conditions form part of this Authority

AGENT FEES AND CHARGES

These fees are based on a rent of \$380 per week.

Leasing Fee *(to initial renter or new renter)*

 % including GST of the *Average Annual Rental.

or **calculated as follows:**

1.5 weeks rental including GST

Estimated Fee: \$569.98 including GST \$51.82 on leasing at \$1651 per calendar month

Re-Leasing Fee *(to existing renter in possession)*

 % including GST of the *Average Annual Rental.

or **calculated as follows:**

\$165.00 including GST

Estimated Fee: \$165.00 including GST \$15.00

Managing Fee

5.50 % including GST of the *Average Annual Rental.

or **calculated as follows:**

Estimated Fee: \$90.81 per calendar month including GST \$8.26 on leasing at \$1651 per calendar month

Marketing Expenses

Refer to schedules of Marketing Expenses and Managing Expenses attached.

The Client acknowledges having been informed by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters), before signing this Authority that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)'s Fees and the Marketing Expenses are subject to negotiation.

Commission sharing

Will DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)'s commission be shared with other people (other than a licensed estate agent or an agent's representative employed by the agent, or a licensed agent who is in partnership with DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters))?

☐ Yes ☒ No (Important – if "Yes", see clause 15).

Rebate Statement

(This statement must be incorporated within the Authority in the approved form – section 49A(1)(c) Estate Agents Act 1980)

A rebate includes any discount, commission, or other benefit, and includes non-monetary benefits. It is illegal for an agent to keep any rebate they receive for advertising or other outgoings purchased by an agent on your behalf. Section 48A of the Estate Agents Act 1980 requires the Agent to immediately pay you any rebate they receive in relation to the sale management or leasing of your property. An agent is not entitled to retain any rebate and must not charge you an amount for any expenses that is more than the cost of those expenses.

☐ DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will not be, or is not likely to be, entitled to any rebates

☒

DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will be, or is likely to be, entitled to rebates

List of Rebates:

- any outgoings; or
- any pre-payments made by the Client in respect of any intended expenditure by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) on the Client's behalf; or
- any payments made by the Client to another person in respect of the work.

Goods/services to which rebate relates	Name of person or organisation providing rebate	Amount (including GST) (if amount not known, provide an estimate)
Landlord & Property Insurance	Pi-Plus Insurance	\$15.00

SCHEDULE OF AGENT FEES

Marketing

Internet Marketing Bundle (Multiple Platinum/Premiere sites)	\$ 285.00 incl. GST		
For Lease Board	\$ 165.00 incl. GST	☐ Yes	☒ No
OBRIEN360 Virtual Tour, PLUS Still Images, Floor Plan & Site Plan (where possible)recommended for all new listings/relistings	\$ 150.00 incl. GST		

Financial Statements

Disbursement Statement via Email	Free		
Disbursement Statement via Post	\$15.00 per statement if printed and mailed	☐ Yes	☒ No
End of Financial Year Statement (via Email, current year)	Free		
End of Financial Year Statement (current year via Post)	\$ 50.00 incl. GST	☐ Yes	☒ No
End of Financial Year Statement (regenerating/sending prior years if available)	\$ 50.00 incl. GST		

Service of Documents

Registered Post as incurred	At Cost
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Tribunal Fees (if required)

VCAT Application Fees as incurred	At Cost
Warrant of Possession as incurred	At Cost
VCAT Preparation & Agency Attendance Fee	\$ 220.00 incl. GST

Please note: Tribunal fees are subject to market changes and notices and applications must be served by registered post.

Additional Fees

Renter Database Check	\$ 15.00 incl. GST
Registered Post	At Cost
Condition Report Photos	Free

Handle Insurance Claim on behalf of Rental Provider	5.5% incl. GST of total claim
Fully Furnished Inventory (Furnished Properties Only)	\$ 250.00 incl. GST
Key Cutting	At Cost
Compliance Services (Gas/Electricity/Smoke Alarm/Rental Minimum Standards Report)	If you instruct OBrien Real Estate to engage the services of our preferred Compliance Report providers, agreed costs (variable per service) will apply

Supervision of capital improvements over the value of \$2,000 will incur a fee of 11% incl. GST of the total works invoiced.

Client Signature(s)

Rental Provider 1: **Christopher Stephen**



Signed at Tue, 23/08/2022 21:34 , from device: Windows 10 Other Chrome 104.0.0

Rental Provider 2: **Priya Stephen**



Signed at Tue, 23/08/2022 21:39 , from device: Windows 10 Other Chrome 104.0.0

DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) reserves the right to increase fees from time to time in accordance with movements in market prices.

AGENT SERVICES

LEASING & MANAGING YOUR PROPERTY

DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) agrees to perform the Agent Services for the Client in exchange for the Agent Fees identified in this Authority.

Appraisal of your property

- Inspect the Property and provide a written rental market appraisal and recommend any improvements to enhance value and attract the best Renter.

Marketing of Your Property for Lease

- Marketing of the Property on at least the following internet sites:
www.realestate.com.au
www.domain.com.au
www.homely.com.au
www.obrienrealestate.com.au
www.realestateview.com.au
- Marketing of the Property on the DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) Rental List displayed in DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) offices and provide to prospective Renters and corporate relocation agencies.
- Conducting advertised "open for inspections" as necessary.
- Conducting private appointments with prospective Renters as required.
- Recommend ways to maximise the appeal of the Property to prospective Renters.
- Arrange preparation/display of "for Lease" signs.
- Promote the Property to the database of prospective Renters maintained by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).
- Provide regular reports on prospective Renter interest.

Renter Selection

- Obtaining a fully completed tenancy application form from all interested parties.
- Processing and reference checking of all applications to verify details including past/present tenancy references and employment history. Including full tenancy

database search to establish each prospective Renter's suitability, if indicated on Schedule of Agent Fees.

- Submit prospective Renter offers and recommendations.
- Renter selection in consultation with the Client and negotiation of favourable Residential Rental Agreement terms, rent levels and special conditions if required with both the Client and the Renter.
- Brief the Renter on obligations under the Residential Rental Agreement and obtaining first month's rent and bond to secure the Property.
- Prepare any required Condition Report at the start of the Residential Rental Agreement.
- Take digital photographs and/or video of the Property indicating location of smoke alarms and other features requiring regular inspection.

Preparation of Documentation

- Preparation of Residential Rental Agreement documentation or providing details for the advisors to the Client to prepare and adding special conditions if required.
- Condition Report and internal & external photographs documenting the condition on commencement of the Residential Rental Agreement.
- Preparation of any applicable Residential Tenancies Bond Lodgement Form (bond monies to be lodged with the RTBA within 10 days).
- Provide the Renter with a statement in writing advising after hours emergency contact numbers for urgent repairs and the authorised urgent repair limit as required by the Residential Tenancies Act (if applicable).

Managing Your Property

- Collect monthly Rent and provide the Client with monthly statement/tax invoice (by email or mail) detailing all income & expenditure and electronically depositing funds into nominated accounts. Payments of GST to Australian Tax Office as required. Email statements preferred.
- Pay all regular and authorised outgoings from Rent including rates, water, Owners Corporation, regular garden maintenance, etc.
- Arrange for appropriate contractors to carry out periodic inspections on behalf of the Client.
- Arrange necessary repairs, maintenance and quotes using qualified and experienced tradespeople. Alternatively use tradespeople

nominated by the Client. DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will only pay tradespeople who supply a valid ABN and Insurance.

- Conduct regular routine inspections of the Property each year and provide a report in writing in any form on the cleanliness, presentation and recommended immediate and future maintenance required on the Property.
- Notify the Client of any breach of the Residential Rental Agreement or any significant damage/accident to the Property.
- Negotiation of Residential Rental Agreement renewals and serving rent increase documentation for any existing Residential Rental Agreement.
- Careful management of any rental arrears and service of any applicable VCAT notices within required time frame or as instructed by the Client.
- Complete all documentation pertaining to a change of the Renter during the course of a Residential Rental Agreement.
- Providing end of financial year statement detailing total revenue and expenses.

Finalising the Residential Rental Agreement

- Conducting final inspection to ensure the Property is in an acceptable condition as reflected by any applicable Condition Report with exception of normal "fair wear and tear" in accordance with the Residential Tenancies Act or Retail Leases Act (if applicable).
- Complete and lodge any applicable Bond claim form where both parties have agreed on disbursement.
- If a dispute arises in bond allocation at the end of the Residential Rental Agreement DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will prepare all applicable tribunal documentation and representation on behalf of the Client at Victorian & Civil Administrative Tribunal if required.

Disclaimer

- The Client acknowledges and agrees that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is entitled to rely on the accuracy and completeness of all information provided by the Client or the advisors to the Client relating to the Property. DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate

(Brewsters) shall not be obliged to check or verify the accuracy or completeness of any information provided by the Client or on behalf of the Client.

- While DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will perform and provide the Agent Services with reasonable professional skill and care DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall not be liable to the Client or any third party for any inaccurate or incomplete information particulars or documents provided by or in relation to any Renter.
- Unless DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is given notice of any Hazardous Condition in the Property DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall not be liable to the Client or any Renter or any third party for any loss or damage to property or personal injury arising from or related to the Hazardous Condition.
- This Authority authorises DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to act as an agent on behalf of the Client. As such the Client shall remain vicariously liable for any act matter or thing done or omitted to be done by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) while acting on behalf of the Client pursuant to this Authority.
- The Client indemnifies and holds harmless DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) and shall keep DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) indemnified against any loss damage or personal injury incurred by any Renter or third party arising from the Residential Rental Agreement use or enjoyment of the Property except to the extent that such loss damage or injury is caused by any act neglect or default on the part of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) pursuant to the duties and obligations imposed on DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) by this Authority.

AGREEMENT

1. Our Commitment and services

1.1 Agent Services - DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will perform and provide the Agent Services:

1.1.1 With reasonable professional skill and care and in good faith with regard to interest of the Client in the Property.

1.1.2 With the diligence expected of a professional estate agent.

1.1.3 In compliance with all applicable laws, good estate management and Professional Conduct Rules of Real Estate Institute of Victoria.

1.1.4 In accord with any deadline or timing reasonably required by the Client.

DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) warrants that it is a member of the Real Estate institute of Victoria.

1.2 Other Advisors - DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall co-operate with any other professional advisors instructed by the Client in relation to the Property whose names have been notified to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) and supply to them promptly at the reasonable expense of the Client all such information concerning the Property as they shall reasonably request.

1.3 Letting services

Where the Client authorises DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to let or re-let the Property, unless otherwise instructed by the Client or excluded under the terms of this Authority, DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will during the term of this Authority:

- (a) provide to the Client estimates of potential rental income and advice on ways to maximise the Property's appeal to achieve such potential, but otherwise follow the Client's instruction in respect of actual rental to be applied in any Residential Rental Agreement;
- (b) market the Property as required to achieve letting of the Property, such as

marketing arrangements to be agreed to by the parties;

(c) be responsible for locating and introducing to the client suitable prospective renters based on agreed established criteria so as to enable the Client to make an informed decision as to the suitability of prospective renters;

(d) conduct Property inspections with potential renters;

(e) check the suitability of prospective renters utilising appropriate residential tenancy databases where necessary;

(f) negotiate, finalise, and where necessary execute on behalf of the Client, any Residential Rental Agreement or amendments or variations thereto, including any other documents in relation to a Residential Rental Agreement authorised by this Authority or otherwise agreed to in writing by the Client;

(g) prepare and provide to the Client any inspections required under relevant legislation.

1.4 Management services

Where the Client authorises DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to manage the Property as indicated by the terms of this Authority, unless otherwise instructed by the Client or excluded under the terms of this Authority, DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will during the term of this Authority:

(a) Collect and receive all monies payable in accordance with any Residential Rental Agreement (rent, bond, and otherwise) with respect to the Property;

(b) Lodge bond forms as required with the RTBA and prepare and serve any notices required to be served on a renter in respect of their Residential Rental Agreement, whether as required by relevant legislation or otherwise;

(c) Conduct and arrange periodic property inspections and other inspections as may be required under this Authority and relevant legislation or as otherwise requested by the Client;

(d) In respect of repairs and maintenance:

- i. Advise the Client of any defect, damage or want of repair to the Property of which DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is informed or becomes otherwise aware;
- ii. Initiate and pay for maintenance, services and repairs on the Property, enlisting licensed and/or qualified tradespeople where required without first seeking permission from the Client up to a maximum expenditure:
 - A. of \$300.00 for non-urgent repairs; and
 - B. up to a sum of not more than \$2,500.00 for urgent repairs.
- iii. obtain the Client's written approval before ordering maintenance, services or repairs if the cost of the maintenance, services or repairs is more than the allowable maximum expenditure as set out in clause 1.4(d)(ii).
- iv. In cases where urgent repairs (as defined in the Residential Tenancies Act 1997) are required:
 - A. immediately initiate repairs up to the maximum expenditure as set out in clause 1.4(d)(ii); and
 - B. where such repairs exceed the maximum expenditure as set out in clause 1.4(d)(ii), immediately contact the Client or other designated contact for further instruction;
- v. take reasonable steps to ensure goods and services obtained for the Client are at competitive prices;
- (e) advise the Client upon the termination of any Residential Rental Agreement and or a renter vacating the Property;
- (f) immediately notify the Client in writing if DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) becomes aware of a renter's breach of their Residential Rental Agreement;
- (g) prepare for and attend VCAT hearings where required;
- (h) for and on behalf of the Client, recover monies due and unpaid by a renter subject to their Residential Rental agreement and in so doing may use independent legal

services. DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may claim fees due under this Authority from any monies recovered;

(i) provide financial statements and account to the Client with respect to all monies received, paid, or used by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters), carrying out DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)'s obligations under this Authority; and

(j) issue tax invoices, when necessary or required by the Client, in respect of all monies owing by the Client to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

2. Our Fees

2.1 While this authority is in force, DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may deduct the Agents Fees and Charges from any Rent received for the Property, and the Client acknowledges and agrees that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is irrevocably authorised to make such deductions.

2.2 Any modifications to this Authority may only occur with the prior written consent of the authorised officer of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

2.3 If the Client is entitled to any Rent that has been forfeited as a result of a Renter failing to assume occupation of the Property, the Client covenants and agrees to do all things and take all reasonable steps to recover any such forfeited Rent from the Renter or such other person as may be liable for the payment of such forfeited Rent.

2.4 In the event the Property is leased and DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) does not receive any Rent, the Client acknowledges and agrees that it must pay all Agents Fees and Charges to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) immediately upon DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)'s request.

2.5 If DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) provides an

invoice to the Client, and the Client fails to pay such invoice within thirty (30) days of receiving the invoice, the unpaid monies under that invoice will be considered overdue ("Overdue Monies"). Penalty interest shall accrue in respect of the Overdue Monies at the rate fixed from time to time under Section 2 of the Penalty Interest Rates Act 1983, calculated from the date of the invoice until the date the Overdue Monies are paid by the Client in full.

- 2.6 The Client acknowledges DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may, during the term of the Authority, to better facilitate the provisions of the Authority, utilise the services of another agent in which case there may be commission sharing and upon the Client granting consent to commission sharing, which consent shall not be unreasonably withheld, the Client will complete the new Authority making such provision, but otherwise on the same terms as this Authority (unless amendment is agreed to) including completion of the Agents Fees and Charges section of this Authority to enable such commission sharing for the balance term of this Authority.
- 2.7 The parties agree DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will have been the effective cause of letting, where DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) has been a source of information with respect to bringing to the attention of a Renter that the Property is available for rent.
- 3. Leasing Property**
- DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) agrees to use best endeavours to lease the Property on the Client's behalf, and if the Property is successfully leased, the Client must pay the Agent's Fees as follows:

- 3.1 If the Property is leased during the Exclusive Leasing Period, whether it is leased by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) or by any other person.
- 3.2 If the Property is leased during the Continuing Leasing Period by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).
- 3.3 If the Property is leased before this Authority is signed but the Renter is a person introduced to the Property by DGRE Pty Ltd atft DGRE

Brewsters Trust t/as OBrien Real Estate (Brewsters).

- 3.4 If at any time within the period that is within four (4) calendar months after expiry of the Authority Period, the Property is leased for the Rent referred to in this Authority to a person introduced to the Property by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) where such person was introduced to the Property within the Authority Period.
- 3.5 In the event DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) leases the Property during the Authority Period, the Client acknowledges and agrees that it also authorises DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to subsequently re-let the Property to any new Renter or transferee, and if such re-letting occurs at any time, even if the Authority Period has expired, the Client must pay to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) the applicable Agents Fees.
- 3.6 In the event the Property is not leased during the Authority Period or the Continuing Leasing Period, the parties acknowledge and agree that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is granted a non-exclusive authority to lease the Property for an additional continuing leasing period identical in duration to the Continuing Leasing Period.

4. Marketing Expenses

On executing this Authority the Client must pay to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) the maximum amount of Marketing Expenses. Throughout the currency of this Authority the Client must pay Marketing Expenses to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) on demand. The Client may request from DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) from time to time (acting reasonably) an itemised list of Marketing Expenses.

5. Managing Property

- 5.1 The Client appoints DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to manage the Property for the duration of this Authority or any period during which DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) manages the Property.

- 5.2 Authority vested in DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) by this Authority shall be deemed to be vested in DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)'s authorised employees provided that the Client will at all times remain the principal.
- 5.3 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) agrees to such appointment.
- 5.4 When delegating authority to authorised employees, DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) (licensee) must properly supervise such persons.
- 5.5 Either party may terminate this Authority during the Continuing Leasing Period or the Fixed Management Period at any time on the giving of written notice. Where no notice period is specified in the Essential Particulars to this Authority, the notice period is seven (7) days. Such termination will be without prejudice to either party's existing rights, duties or obligations.
- 5.6 The Client acknowledges and confirms that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may, with the Client's consent, assign its rights, duties and obligations under this Authority on the giving of fourteen (14) days' written notice to the Client. The Client will be deemed to have consented if no objection is made within the fourteen (14) day period.
- 5.7 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will not induce, or attempt to induce, a breach of, or an interference with, a contract between the Client and a renter.
- 5.8 Where a Rental Provider's instruction form is attached to this Authority it forms part of this Authority and any alterations in such form during the term of the Authority must be in writing.

6. Property

- 6.1 The Client acknowledges that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will be relying on the truth, accuracy and completeness of all information provided by the Client in respect to the Property.

- 6.2 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall not be responsible or liable to the Client to verify the truth, accuracy and completeness of any information provided by the Client in respect to the Property.
- 6.3 The Client shall notify DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) as soon as possible following any change to or receipt of additional information relevant to the leasing and/or management of the Property.
- 6.4 The Client acknowledges to and agrees with DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) that there is no patent or latent defect in the Property which would amount to a Hazardous Condition.
- 6.5 The Client acknowledges to and agrees DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) that if at any time the Client becomes aware of any Hazardous Condition the Client shall give to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) prompt notice in writing of the Hazardous Condition.
- 6.6 If DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) advises the Client of any potential or actual defect with the Property that advice shall be deemed sufficient notice to the Client of a Hazardous Condition.
- 6.7 The client agrees to notify insurer's or interested financial institutions that the subject property is being tenanted.

7. Indemnity

- 7.1 The Client indemnifies and holds harmless DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters), its officers and employees and shall keep DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters), its officers and employees indemnified against all actions, claims, demands, losses, costs, damages and expenses (including reasonable legal costs and expenses) or liability incurred or suffered by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) arising from any proceeding against DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) where such loss or liability was caused or contributed to by:
 - 7.1.1 A breach of or failure to comply with any

obligations under this Authority by the Client.

7.1.2 Any wilful, unlawful or negligent act or omission by the Client.

7.1.3 Any failure by the Client to provide full accurate and complete information about the Property.

7.1.4 Any failure by the Client to give appropriate authority or instruction, or sufficient funds to carry out an instruction or authority.

7.1.5 A Renter's failure to comply with the Renter's obligations under relevant legislation in respect of their Residential Rental Agreement.

7.1.6 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) acting in the capacity of the Client under this Authority.

7.1.7 The Client's failure to maintain the Property and or carry out repairs.

7.1.8 The Client's non-compliance with any term or condition of this Authority.

7.1.9 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) giving notice to the Client of damage, defects or want of repair to the Property.

7.1.10 A warning label or safety instructions having been removed, damaged or defaced where a product or fitting has been supplied to the Property with such a label or instruction attached.

7.2 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall not be liable to the Client for any act or omission of any person engaged by the Client and the Client shall indemnify and hold harmless DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters), its officers and employees and keep DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters), its officers and employees indemnified against any liability, claim, damage, loss, cost and expense (including reasonable legal costs and expenses) arising from or incurred in connection with such loss, act or omission.

7.3 The Client acknowledges that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is acting only in the capacity of a managing agent subject to this Authority, and not otherwise.

7.4 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is not responsible for reporting any matters (including defects latent or otherwise) other than those that are readily apparent during the course of any inspections or as are brought to their attention as managing agent by a Renter.

7.5 It is the Client's responsibility to obtain specific advice in respect of the Property and its soundness as to:

- (a) building and structural integrity; and
- (b) pest, health, and other requirements.

7.6 The Client indemnifies and holds harmless DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters), its officers and employees and shall keep DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters), its officers and employees indemnified from and against all actions, claims, demands, losses, costs, damages and expenses in relation to this Authority with respect to matters of cleanliness, safety, construction, building requirements or building deterioration.

8. Personal Information

8.1 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will comply with the Australian Privacy Principles in all dealings with the Client.

8.2 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may need to collect personal information about the Client and the Client consents to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) using any such personal information in order to:

8.2.1 Provide the Agent Services offered by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

8.2.2 Market the Property and maintain a client relationship with the Client.

8.2.3 Secure agreements with the Client or third parties to provide goods or services.

8.3 The Client also consents to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) disclosing personal information of the Client to:

8.3.1 Any credit provider or credit reporting agency for the purpose of obtaining information about the consumer or commercial credit or business history of

the Client or the commercial activities or credit worthiness of the Client.

8.3.2 The service providers, contractors and affiliated companies of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) from time to time to help improve and market the Agent Services of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to the Client.

8.4 The Client has the right to access personal information held by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) about the Client and to have any personal information corrected.

8.5 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) will use personal information in accordance with the Privacy Policy and the Privacy Collection Notice adopted by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters). The Privacy Policy and the Privacy Collection Notice can be viewed on DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) website or a copy can be made available on request.

8.6 Upon signing this Authority the parties agree DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) and the form completion service provider providing this form (if relevant) may without disclosing personal information collect, use and disclose to data collection agencies information contained in this Authority and any subsequent Residential Rental Agreement.

9. Transfer and Delegation

9.1 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is permitted to transfer ("Transfer") this Authority to a third party licensed estate agent ("Transferee") provided that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) gives prior written notice to the Client ("Transfer Notice"). The Client has fourteen (14) days from the date the Transfer Notice is posted to the Client within which to object in writing to the Transfer. In the event the Client does not object in writing to the Transfer within that fourteen (14) day period, then the Transfer will be deemed as effected and the Transferee shall assume the benefit of this

Authority as if such Transferee was named in this Authority and the Client shall be bound to the Transferee in that regard.

9.2 The Client expressly authorises DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to delegate any of the roles and responsibilities of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) pursuant to this Authority from time to time. Any such delegation shall be made by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) in its capacity as the Client's agent and not by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) as principal in its own right. In the event DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) delegates a role or responsibility pursuant to this Authority DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall not remain liable for performance of that role or responsibility.

10. Security

10.1 In the event any Agents Fees and Charges due and payable to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) remain unpaid for a period of at least thirty (30) days after the date of issue of any invoice ("Overdue Amounts"), in order to secure payment of any such Overdue Amounts the Client charges the Property with the payment the Overdue Amounts. DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall retain the benefit of the charge until such time as all Overdue Amounts are paid in full.

10.2 In the event any moneys remain due and payable to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) pursuant to this Authority, then as security for performance DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) has a right of lien over all documents and other property of the Client that are in DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)'s possession or control until such time as those moneys are paid in full to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

11. Termination

- 11.1 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may terminate this Authority in its absolute discretion by giving thirty (30) days' written notice to the Client.
- 11.2 In the event of failure on the client's part to provide DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) with sufficient funds, instructions, and /or documents to enable DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to reasonably perform the Agent Services as contemplated by this Authority, then DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may immediately cancel this Authority by written Notice. Such termination shall be without prejudice to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)'s rights under this Authority.
- 11.3 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may cancel this Authority immediately by written notice to the Client in any of the following events:
- (a) if the Client revokes the Power of Attorney incorporated in this Authority;
 - (b) if the Client fails to properly and promptly confirm any matter reasonably requested by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters); or
 - (c) if the Client fails to pay or reimburse DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) on request for any expenses that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) has reasonably incurred as authorised under power of attorney under this Authority.
- 11.4 Upon termination of this Authority all monies owing under this Authority must be paid or reimbursed up to and including the end date of this Authority on a pro rata basis if necessary.
- 11.5 In the event DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) cancels this Authority the Client must immediately on written demand pay or reimburse DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate

(Brewsters) all Agent Fees and Charges and other costs incurred by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) under this Authority, including accruing interest. Interest shall accrue from the due date for payment until the date of payment at the rate of [10.0% p.a] **OR** [the rate prescribed by the Attorney General in accordance with the *Penalty Interest Rates Act 1983*.]

- 11.6 The Client is not permitted to cancel this Authority during any Exclusive Leasing Period. The Client may cancel this Authority at any time after any Exclusive Leasing Period upon giving not less than thirty (30) days' prior written notice. If the Client has agreed to a Fixed Management Period and the request to cancel this Authority falls within the period of a Fixed Term Residential Rental Agreement, then the Client may only cancel this Authority on payment of liquidated damages, which the parties agree shall be fixed at an amount equivalent to six (6) months of the Agent's Fees payable for management of the Property.

12. Power of Attorney

- 12.1 The Client appoints the officer in effective control of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) from time to time and/or the representative of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) who manages the Property from time to time as attorney to engage appropriate contractors and/or suppliers to carry out any necessary work and/or provide any necessary goods or services to repair and/or maintain the Property and/or comply with any law affecting the Property.
- 12.2 The Client shall pay or reimburse DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) on demand for any expense that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) properly incurs acting as attorney for the Client.
- 12.3 The Client shall promptly ratify and confirm any act, matter or thing done by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) as attorney for the Client on written request by DGRE Pty Ltd

atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

- 12.4 The Client acknowledges that if the Client revokes this power of attorney DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may cancel this Authority.

13. Authority to Execute

- 13.1 The Client expressly authorises DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to execute any Residential Rental Agreement on the Client's behalf where such Residential Rental Agreement has been prepared by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) or the Client's legal representative. The Client further expressly authorises DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to include in the Residential Rental Agreement any other terms or conditions that are reasonably required for the leasing of the Property.
- 13.2 The Client expressly authorises DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to execute on the Client's behalf any notice or other document relating to the Residential Rental Agreement of the Property for the purpose of performing the Agent Services.

14. Rebate Statement

DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) confirms it will not, or is not likely to be, entitled to any rebates during the course of this Authority. A rebate includes any discount, commission or other benefit and includes non-monetary benefits. It is illegal for DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to keep any rebate it receives for advertising or other outgoings purchased on your behalf. Section 48A of the *Estate Agents Act 1980* requires DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to immediately pay you any rebate it receives in relation to the sale management or leasing of your property. DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) acknowledges and agrees that it is not entitled to retain any rebate and must not charge you an amount for any expenses that is more than the cost of those expenses. If DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is

entitled to a rebate, the rebate Statement Form approved by Director of Consumer Affairs Victoria will be completed at the time of signing this Authority. The form can be downloaded at www.consumer.vic.gov.au

15. Commission Sharing

- 15.1 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) may share commission to which it becomes entitled in respect of any estate agency work with:

(a) any of its employees who is an estate agent or agent's representative, or with an estate agent who is a business partner of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) or appointed on a conjunctual basis.

- 15.2 In the event DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shares any commission with a person who is:

(a) not a licensed real estate agent or an agent's representative in DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters)s employ; or
(b) not a licensed estate agent with whom DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is in partnership,

then DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) must first provide to the Client a notice of commission sharing in accordance with section 48 of the *Estate Agents Act 1980*. Where such commission sharing is applicable under this Authority, the Client acknowledges, prior to signing this Authority, having received a notice of commission sharing in accordance with section 48 of the *Estate Agents Act 1980*.

16. Residential rental agreement

If any Residential Rental Agreement of the Property is subject to the Residential Tenancies Act 1997 (as amended from time to time) the Client acknowledges that the Renter may be permitted to arrange for urgent repairs to the Property for which the Client will be liable. The Client authorises DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to arrange for

urgent repairs up to the Repair Limit without reference to the Client.

17. Dispute Resolution

17.1 In compliance with the *Estate Agents (Professional Conduct) Regulations 2018*, in the event of any complaint or dispute, DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) has dispute resolution mechanisms in place. In the event of a complaint or dispute arises the Client shall be entitled to invoke the dispute resolution mechanisms.

17.2 If the Client has any complaint relating to the payment of Agent Fees and Charges they can refer the matter to the Director of Consumer Affairs Victoria. Unless there are exceptional circumstances, Consumer Affairs Victoria is unable to hear any dispute in respect of Agent Fees and Charges unless Consumer Affairs Victoria is given notice of the dispute within twenty-eight (28) days of the Client receiving an invoice from DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

18. Client Acknowledgement

The Client acknowledges that:

18.1 Any Marketing Expenses that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) incurs pursuant to this Authority will be payable irrespective of whether the Property is leased and at the discretion of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) on signing this Authority or on written demand or by deduction from any Rent received by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

18.2 Only those Agent Services identified in the Schedule of Agent Services apply to this Authority.

18.3 The Client has received an electronic copy of this Authority immediately after all parties have signed the Authority.

18.4 Before signing this Authority DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) has advised the Client that DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) has procedures in place for resolving any complaint or dispute. The Client will comply

with those procedures to help resolve any complaint or dispute.

18.5 The Client must scroll through and view each page of this Authority before being able to sign it.

19. Client Obligations

The Client agrees to:

19.1 Obtain the consent of any third party required to lease the Property and/or ratify any matter DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) undertakes as attorney for the Client.

19.2 Pay DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) all Agent Fees and Charges (including any GST) and permit DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to deduct all such sums from money received by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) which may be due to the Client.

20. Client's obligations and authority

20.1 The Client warrants:

(a) it is the owner of the Property and has full authority to enter into all Residential Rental Agreements; or

(b) where it is not the owner of the Property it has full authority to enter into all Residential Rental Agreements.

20.2 The Client confirms at the time of entering into this Authority that it has disclosed to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) all relevant and material facts relating to the Property, namely all facts relating to the Client's obligations and authority is detailed in this Authority, including but without limitation, property ownership, Residential Rental Agreements, safety and condition of the Property, and fittings in compliance with relevant government legislation.

20.3 The Client will ensure, at its own cost:

(a) at the commencement of any Residential Rental Agreement, the Property and inclusions are in a fit, proper and safe condition to be let and comply with local and state authority building and other relevant legislation;

(b) during the term of any Residential Rental Agreement:

- i. the Property is in a fit, proper and safe condition to be let for the purposes of a Residential Rental Agreement;
 - ii. the Property and inclusions (including all locks and security fittings) are maintained and are in a reasonable state of repair;
 - iii. sufficient keys to the Property are provided to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) and the Renter(s) for each lock; and
 - iv. the Property is treated as necessary and when required by a licensed pest controller.
- 20.4 In respect of any swimming pool or spa on the Property:
 - (a) prior to the start and at all times during the term of a Residential Rental Agreement, the Client must ensure, at its own cost, that any swimming pool or spa complies with the *Building Act 1993 (Vic)* and regulations to the Act and that any such swimming pool or spa:
 - (i) is registered; and
 - (ii) has a current Certificate of Swimming Pool Barrier Compliance.
 - (b) the Client will provide any current Certificate of Swimming Pool Barrier Compliance to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) on request.
- 20.5 The Client must have public liability insurance and be covered for a minimum of \$10million dollars. Such policy must be maintained for the term of the Authority and the Client must upon request provide to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) a certificate annually confirming the currency of such policy.
- 20.6 The Client will at all times during the currency of this Authority keep DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) advised of and disclose to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) in writing details of any defects or want of repair to the Property which are likely to result in or cause injury to persons occupying, entering upon or using the Property.
- 20.7 The Client acknowledges, upon receipt of advice or notice from DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) in accordance with clause 6.6, the Client must comply with its obligations to maintain the Property in a fit, proper and safe condition.
- 20.8 The Client understands that where urgent repairs are required to be carried out, a Renter may, in accordance with section 72 of the Residential Tenancies Act 1997, carry out such repairs to a limit of \$2,500.00 including GST, and in such circumstances the Renter is entitled to be reimbursed by the Client.
- 20.9 The Client acknowledges that once a Residential Rental Agreement has been entered into by the Client, it shall not be the responsibility of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to enforce such Residential Rental Agreement and DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is limited to its obligations under this Authority as an agent of the Client.
- 20.10 In addition to complying with the terms of this Authority, the Client must comply with the requirements of all relevant Acts, legislation, by-laws, rules and regulations, local, state and federal.
- 20.11 Where insufficient funds are available to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) in accordance with clause 2.1, the Client will, upon request by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters), pay any balance outstanding.
- 20.12 Where a product, fixture or fitting provided with the Property has a warning label or safety instructions attached, the Client must not deface, damage or remove such label.
- 20.13 The Client will keep DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) advised of any changes to information in respect of this Authority, material facts and, where a Rental Provider's Instruction Form is attached, changes to information in such form.
- 20.14 The Client will refer any prospective renters of the Property of which the Client becomes aware to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

21. **Related documents/notices/electronic communication**

- 21.1 The parties agree and confirm any documents and communications in relation to this Authority may be forwarded electronically and where this document has been forwarded electronically (either for signing or otherwise) the party receiving the document confirms having consented to the delivery of the document (and any other materials) by way of the electronic means of delivery before receiving the documentation.
- 21.2 A Related Document to be served on any party under this Authority shall be in writing and may be served on that party:
- (a) by delivering it to the party personally;
 - (b) by leaving it for the party at that party's address as stated in this Authority; or
 - (c) by posting it to the party by ordinary mail or security mail as a letter addressed to the party at the address as stated in this Authority; or
 - (d) by electronic communication to the party at the appropriate electronic address as stated in this Authority; or
 - (e) by delivery to an alternative address, provided in writing by the party, by any of the methods outlined in clauses 21.2(a) to (d) above.
- 21.3 A document posted shall be deemed to have been served, unless the contrary is shown, at the time when, by the ordinary course of post, the document would be delivered.
- 21.4 A document sent by electronic communication will be deemed to have been received in accordance with Section 13A of the *Electronic Transactions (Victoria) Act 2000*.
- 21.5 Documents given by a party's solicitor will be deemed to have been given by and with the authority of the party.
- 21.6 Documents must be served before 5pm on a business day, failing which, such document will be deemed to have been served on the next business day.
- 21.7 The parties acknowledge and agree an Electronic Document readily accessible via a link within a Related Document is received when the Related Document is served and

will be opened when the Related Document is opened.

- 21.8 The parties agree to execution, delivery and service of documents electronically by a method provided by an electronic signing service provider.

22. **Unavoidable Delay**

- 22.1 DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall not be responsible to the Client or any Renter for any delay in performance of the Agent Services due to any cause beyond the control of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) including act of God, war, terrorism, civil commotion, riot, embargo, order or regulation of government of any relevant jurisdiction, fire, flood, strike, lock-out, labour difficulty, shortage of or inability to obtain any goods or services, or pandemic.
- 22.2 Nothing in this provision will limit or exclude the responsibility of the Client under this Authority to promptly diligently and fully pay DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) any moneys which have become due and payable to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

23. **General**

- 23.1 This Authority is subject to and shall be construed in accord with the laws in the State of Victoria.
- 23.2 The Client agrees that this Authority shall be governed and construed according to the laws of the State of Victoria and shall submit to the exclusive jurisdiction of the Courts in the State of Victoria.
- 23.3 The Client may not transfer any right or entitlement conferred on the Client by this Authority to any third party. The rights and entitlements shall remain personal to the Client.
- 23.4 Any provision in this Authority that is void, voidable, unenforceable, invalid or illegal and would not be so if one or more words were omitted then those words shall be severed and if that cannot be done the entire provision shall be severed from this Authority without affecting the validity or enforceability of the remaining provisions of this Authority.

23.5 Nothing in this Authority shall be construed or interpreted as constituting the relationship of partners, joint venturers or fiduciaries between the Client and DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

23.6 This Authority constitutes the entire agreement between the Client and DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) in respect of the Property and supersedes any previous agreement, understanding and/or negotiation on that subject matter.

23.7 No right under this Authority shall be deemed to be waived except by written notice signed by the duly authorised officer of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters). A waiver made by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall not prejudice any right in respect of any subsequent breach of the same or any other obligation imposed on the Client.

23.8 Any failure by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to enforce any provision of this Authority or any forbearance, delay or indulgence granted by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) shall not be construed as a waiver.

23.9 The provisions of this Authority which are capable of having effect after termination of this Authority shall remain in full force and effect following the expiry or termination of this Authority.

23.10 In the absence of any written agreement to the contrary the terms of this Authority shall apply to any other services provided by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to the Client and to any other property of the Client entrusted to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

24. Interpretation

In this Authority, unless the contrary intention appears:

24.1 Clause headings are for ease of reference only and shall not be relevant to interpretation;

24.2 A reference to a clause number is a reference to its provisions;

24.3 Words in the singular number include the plural and vice versa;

24.4 Words importing a gender include any other gender;

24.5 Where a word or phrase is given a particular meaning, other parts of speech and grammatical forms of that word or phrase have corresponding meanings;

24.6 Monetary references are references to Australian currency unless expressed to the contrary;

24.7 A reference to two or more elements parts or things and/or reference to "including" shall be inclusive but not exhaustive.

24.8 Each of the provisions in this Authority shall be construed as a separate and independent provision.

24.9 A reference to a document or agreement including this Authority shall include a reference to that document or agreement as novated altered or replaced from time to time.

25. Definitions

Unless inconsistent with the context of this Authority the terms used in this Authority shall have the meanings attributed to them.

25.1 Agent includes DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) and any licensed agent or agent representative as defined by the *Estate Agents Act 1980* and any transferee of the business of DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters).

25.2 Authority Period means the term of this Authority pending cancellation by notice in writing by the Client to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) or 30 days after any Exclusive Leasing Period whichever is the longer period.

25.3 Average Annual Rental means an amount equal to or greater than the rental stated in the Essential Particulars or the rental at which the Client signs a Residential Rental Agreement (even if less than the rental stated in the Essential Particulars).

25.4 Client means the client on behalf of whom DGRE Pty Ltd atft DGRE Brewsters Trust

- t/as OBrien Real Estate (Brewsters) is authorised to perform the Agent Services in respect of the Property.
- 25.5 Hazardous Condition means any patent or latent physical defect in the Property which may injure any person on the Property or any adjacent property.
- 25.6 Electronic Document means any electronic communication (Including Notices) as defined in the *Electronic Transactions (Victoria) Act 2000* including any electronically generated document situated on an external server readily accessible via a link within an electronic communication or other electronically generated document.
- 25.7 Agent Fees and Charges means the commission for leasing and/or managing the Property and includes all Marketing Expenses and other moneys payable by the Client to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) pursuant to this Authority.
- 25.8 Introduced to the Property means to be made aware that the Property is available for lease from whatever source. A person shall be deemed to have been introduced to the Property by DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) if the person becomes aware that the Property is available for leasing as a result of viewing, hearing or reading any advertisement of any kind or medium or other literature referring to the availability of the Property for lease that is connected with us.
- 25.9 Manage means managing the Property and/or the collection of rent, outgoings and other moneys payable by a Renter in any way connected with the Property.
- 25.10 Marketing Expenses includes all advertising expenses and outgoings relating to promotion of the Property for rental agreement.
- 25.11 Person includes a corporation, partnership, trust, institution and any other group of persons or any agent or associate of a person or any person appointed by the original person to take the place of the original person.
- 25.12 Related Document means any written communication including notices, with regard to this matter between the parties, including any Electronic Document.
- 25.13 Rent means any amount less than or equal to or greater than the rent expressed in this Authority or the rent at which the Client signs a Residential Rental Agreement even if less than the rent expressed in this Authority.
- 25.14 Renter means any person to whom the Property is leased or to whom the Property is agreed to be leased. Residential Rental Agreement includes an agreement to lease and/or any heads of agreement offer to lease or any other commitment to lease the Property (whether or not legally binding on the Client or any Renter).
- 25.15 Property means the property identified in this Authority and means real estate as defined in the Estate Agents Act 1980 (as amended from time to time) and includes any other property entrusted to DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) by the Client for DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to provide the Agent Services.

IMPORTANT INFORMATION

A regular inspection of a property by a qualified building inspector is recommended to identify any structural or other defects. DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) is not qualified to undertake such an inspection and cannot accept responsibility to ensure that any property is safe and meets building and Council regulations and to minimise the risk of injury or loss arising from any defect.

If you have not authorised DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to arrange a smoke detector service you are responsible for ensuring that any smoke alarm installed at the property is correctly located and maintained in correct working order. DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) cannot accept responsibility for the maintenance of any smoke alarm in such circumstances.

If you have not authorised DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to arrange a gas testing service you are responsible for ensuring that any gas testing is conducted at the property on a regular basis and that all gas appliances are maintained in correct working order. DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) cannot accept responsibility for the maintenance of any gas appliances in such circumstances.

If you have not authorised DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) to arrange an electrical testing service you are responsible for ensuring that any electrical testing is conducted at the property on a regular basis and that all electrical appliances are maintained in correct working order. DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters) cannot accept responsibility for the maintenance of any electrical appliances in such circumstances.

This Authority has been prepared by Tisher Liner FC Law for DGRE Pty Ltd atft DGRE Brewsters Trust t/as OBrien Real Estate (Brewsters). Any amendment to the terms of this Authority should be made by hand and initialled to avoid any confusion or uncertainty as to the intended terms of this Authority.

DISCLAIMER

The contents of this Authority are of a general nature only and may be liable to misinterpretation by users in particular circumstances. Before utilising this Authority

you should make independent enquiry as to the full scope and impact of this Authority. iProperty Express Pty Ltd makes no representation as to the quality or accuracy of any information incorporated in this Authority. iProperty Express Pty Ltd disclaims any liability for any loss or damage caused by any person(s) relying on any information incorporated in this Authority.

Client Signature(s)

Rental Provider 1: **Christopher Stephen**



Signed at Tue, 23/08/2022 21:36

, from device: Windows 10 Other Chrome 104.0.0

Rental Provider 2: **Priya Stephen**



Signed at Tue, 23/08/2022 21:41

, from device: Windows 10 Other Chrome 104.0.0

AUDIT TRAIL

Christopher Stephen (Rental Provider)

- Tue, 23/08/2022 14:46 - Invite sent to Christopher Stephen
- Tue, 23/08/2022 21:04 - Christopher Stephen clicked 'start' button to view the Leasing & Management Authority (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:06 - Christopher Stephen clicked 'start' button to view the Leasing & Management Authority (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:32 - Christopher Stephen clicked 'start' button to view the Leasing & Management Authority (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:33 - Christopher Stephen signed the Leasing & Management Authority (EssentialParticularsSignature on first page;) (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:34 - Christopher Stephen stamped saved signature the Leasing & Management Authority (ScheduleOfFeesSignature in the middle of document;) (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:36 - Christopher Stephen stamped saved signature the Leasing & Management Authority (LastPageSignature at the end of the document;) (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:36 - Christopher Stephen submitted the Leasing & Management Authority (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)

Priya Stephen (Rental Provider)

- Tue, 23/08/2022 21:36 - Invite sent to Priya Stephen
- Tue, 23/08/2022 21:37 - Priya Stephen clicked 'start' button to view the Leasing & Management Authority (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:38 - Priya Stephen signed the Leasing & Management Authority (EssentialParticularsSignature on first page;) (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:39 - Priya Stephen stamped saved signature the Leasing & Management Authority (ScheduleOfFeesSignature in the middle of document;) (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:41 - Priya Stephen stamped saved signature the Leasing & Management Authority (LastPageSignature at the end of the document;) (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)
- Tue, 23/08/2022 21:42 - Priya Stephen submitted the Leasing & Management Authority (Windows 10 Other Chrome 104.0.0, IP: 125.254.19.130)

Nicole Riverso (Property Manager)

- Tue, 23/08/2022 21:42 - Invite sent to Nicole Riverso
- Wed, 24/08/2022 09:23 - Nicole Riverso clicked 'start' button to view the Leasing & Management Authority (Windows 10 Other Chrome 104.0.0, IP: 203.153.193.50)
- Wed, 24/08/2022 09:25 - Nicole Riverso stamped saved signature the Leasing & Management Authority (EssentialParticularsSignature on first page;) (Windows 10 Other Chrome 104.0.0, IP: 203.153.193.50)
- Wed, 24/08/2022 09:26 - Nicole Riverso submitted the Leasing & Management Authority (Windows 10 Other Chrome 104.0.0, IP: 203.153.193.50)

AGREEMENT END